

		Co. (2004) 33 Cal.4th 653, 660.) Creditors acknowledge the judgment incorrectly identifies the defendant as the Trust itself, rather than naming the trustee of the Trust. The judgment in its current form therefore is void and unenforceable as against the Trust. Creditors' waiver arguments are not sufficient to overcome <i>Portico Management Group, LLC</i> and the governing trust law. For the foregoing reasons, the court DECLINES to issue an order for sale of the dwelling at this time. This ruling is without prejudice to a future application that complies with all timing and other statutory requirements. The ruling also expresses no opinion as to whether the judgment may be amended, corrected, or otherwise changed to reflect it is against the trustee(s) of the Trust. That is for the court that entered the judgment to determine. The court notes Creditors make a number of representations about the Trust, whether it is revocable or irrevocable, who the beneficiary is, etc., but Creditors do not present any evidence to support any other those assertions. Creditors' request for judicial notice is GRANTED. Creditors' counsel is ordered to give notice of this ruling.
12.	American Family Connect Property and Casualty Insurance Company vs. Garcia 2026-01541403	Before the Court are the following three unopposed discovery motions filed by petitioner American Family Connect Property and Casualty Insurance Company (Petitioner) against respondent Karla Sophia Garcia (Garcia): (1) Motion to Compel Responses to Form Interrogatories, (2) Motion to Compel Responses to Special Interrogatories, (3) Motion to Deem Requests for Admissions admitted. All three motions are GRANTED, as set forth herein. The within matter arises from a claim for uninsured motorist benefits being made by Garcia against Petitioner. (Slack Decl. ¶ 3.) "[T]he uninsured motorist law grants the superior court the exclusive jurisdiction to hear discovery matters arising under uninsured motorist arbitrations." (<i>Miranda v. 21st Century Ins. Co.</i> (2004) 117 Cal.App.4th 913, 926; see also Ins. Code § 11580.2, subd. (f)(6).) Petitioner establishes, on July 7, 2025, it served Garcia with Form Interrogatories and Special Interrogatories. (Slack Decl. ¶ 4, Exh. B.) Petitioner also served Garcia with Requests for Admissions, set one, on October 29, 2025. (Slack Decl., ¶ 4, Exh. B.) Petitioner also establishes Garcia did not serve responses to the written discovery

		despite multiple requests. (Slack Decl., ¶¶ 5-7, ROA 28 & 29; ¶¶ 4-6 ROA 27.) Responses to interrogatories and requests for admission are due 30 days after service (plus appropriate time for method of service). (Code Civ. Proc., §§ 2030.260, 2033.250.) California Code of Civil Procedure §2030.290 provides as follows: “If a party to whom interrogatories are directed fails to serve a timely response, the following rules apply: [¶] (a) The party to whom the interrogatories are directed waives any right to exercise the option to produce writings under Section 2030.230, as well as any objection to the interrogatories, including one based on privilege or on the protection for work product under Chapter 4 (commencing with Section 2018.010). [¶] (b) The party propounding the interrogatories may move for an order compelling response to the interrogatories.” With respect to the Requests for Admission, a propounding party may ask the court for an order deeming the matters contained in the requests for admission admitted if the receiving party fails to respond to the requests for admission. (Code Civ. Proc., § 2033.280, subd. (b).) The court shall grant the order unless it finds that the party to whom the requests were directed has served responses in conformance with Code of Civil Procedure section 2033.220 before the hearing on the motion. (Code Civ. Proc., § 2033.280, subd. (c).) As a result of Garcia’s failure to respond to Petitioner’s first set of requests for admissions, Petitioner is entitled to an order deeming the admissions admitted. As a result of the failure to respond to the Petitioner’s form interrogatories and special interrogatories, Petitioner is entitled to an order compelling responses without objections. Accordingly, Garcia is ordered to provide responses without objection to Form Interrogatories, Set One, and Special Interrogatories, Set One, within 30 days of the date that notice of this ruling is served on Garcia. It is further ordered the requests for admission in Requests for Admissions, Set One, propounded to Garcia are deemed admitted. The Court further orders that Garcia pay reduced sanctions in the total amount of \$1,510, for all three motions, to Petitioner, through its attorney of record, within 30 days.
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		(Code Civ. Proc., §§ 2030.290, subd. (c), 2033.280, subd. (c).) Counsel for Petitioner is ordered to give notice of this ruling.
13.	<i>Petition of Liu</i> <i>2026-01555065</i>	Before the court is the verified petition to preserve evidence before filing action filed on behalf of petition Jeffrey Wayne Liu (Petitioner) by and through his attorney Jane Ho. As more fully set forth below, the petition is DENIED because it suffers from a variety of defects. Code of Civil Procedure section 2035.010, et seq. authorizes a party to file a petition seeking prelawsuit discovery for purposes of perpetuating testimony or preserving evidence. The procedure "shall not [be] employ[ed] . . . for purposes of either ascertaining the possible existence of a cause of action nor a defense to it, or of identifying those who might be made parties to an action not yet filed." (Code Civ. Proc., § 2035.010, subd. (b).) To obtain a court order authorizes prelawsuit discovery, the party must file a verified petition setting forth: "(1) The expectation that the petitioner or the petitioner's successor in interest will be a party to an action cognizable in a court of the State of California. [¶] (2) The present inability of the petitioner and, if applicable, the petitioner's successor in interest either to bring that action or to cause it to be brought. [¶] (3) The subject matter of the expected action and the petitioner's involvement. A copy of any written instrument the validity or construction of which may be called into question, or which is connected with the subject matter of the proposed discovery, shall be attached to the petition. [¶] (4) The particular discovery methods described in Section 2035.020 that the petitioner desires to employ. [¶] (5) The facts that the petitioner desires to establish by the proposed discovery. [¶] (6) The reasons for desiring to perpetuate or preserve these facts before an action has been filed. [¶] (7) The name or a description of those whom the petitioner expects to be adverse parties so far as known. [¶] (8) The name and address of those from whom the discovery is to be sought. [¶] (9) The substance of the information expected to be elicited from each of those from whom discovery is being sought." Code of Civil Procedure section 2035.040 requires the party to serve the petition and a notice of the hearing on the petition "on each natural person or organization named in the petition as an expected adverse party." Service must be made in the same manner as service of a summons, and